

Smt. Vijay Kumari Srivastava v. Purvanchal Electricity Distribution Corporation Ltd.

Allahabad High Court · Division Bench · 24 May 2018 · WRIT - C No. - 18868 of 2018 · **Writ not pressed; liberty to clause 6.5(b); merits not examined.**

HEADNOTE

Writ against Purvanchal Electricity Distribution Corporation Ltd. disposed of as not pressed, with liberty to pursue the same challenge under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The Court recorded that it had not examined the merits.

FACTUAL SUMMARY

Smt. Vijay Kumari Srivastava filed a writ petition in the Allahabad High Court against Purvanchal Electricity Distribution Corporation Ltd. At the hearing her counsel did not press the petition and instead sought liberty to raise a similar challenge under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The Division Bench of the Chief Justice and Suneet Kumar, J. disposed of the writ as not pressed, granted that liberty, and recorded that the Court had not examined the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

not-pressed writ; liberty to consumer grievance forum

HOLDING

The writ petition was disposed of as not pressed, with liberty to the petitioner to take a remedy under clause 6.5(b) of the Electricity Supply Code, 2005, raising the same challenge as in the writ. The Court made clear that it had not examined the merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CHALLENGE AGAINST THE DISTRIBUTION LICENSEE

The Court expressly recorded that it had not examined the merits of the case. ¶ 1